

By: ci
Date: 7/3/13

Approved as to
form only:

GYT
Date: 7/3/13

**MEMORANDUM OF UNDERSTANDING
BETWEEN THE TOWN OF HULETT, WYOMING AND
THE CITY OF CHEYENNE, WYOMING FOR
LAW ENFORCEMENT
EXTRATERRITORIAL ASSISTANCE**

This Memorandum of Understanding (hereinafter referred to as "MOU") is entered into on the 5th day of August, 2013, by and between the Town of Hulett, Wyoming, a Wyoming municipal corporation (hereinafter referred to as "Town of Hulett"), whose address is Town Hall, 401 Sager Street, Hulett, Wyoming, 82720, and the City of Cheyenne, a Wyoming municipal corporation, whose address is Municipal Building, 2101 O'Neil Avenue, Cheyenne, Wyoming, 82001, (hereinafter referred to as "City of Cheyenne"). The Town of Hulett and the City of Cheyenne are hereinafter collectively referred to as "Party" or "Parties."

RECITALS:

WHEREAS, because responses to emergency or special circumstances may exceed the immediate manpower, skill, and equipment capacities of either Party's police department, the City of Cheyenne and the Town of Hulett may request that the other Party provide certified peace officers for law enforcement services.

WHEREAS, pursuant to WYO. STAT § 7-2-106(b), the Town of Hulett and the City of Cheyenne are authorized to enter into an MOU for the purpose of providing mutual law enforcement aid and assistance to the other Party's police department.

NOW, THEREFORE, subject to the limitations of this MOU, the provisions of WYO. STAT. § 7-2-106(b), the parties agree as follows:

1. Duration of MOU: Pursuant to WYO. STAT. § 7-2-106(b), this MOU shall not be effective until it is approved by the respective governing bodies for the Town of Hulett, Wyoming and the City of Cheyenne, Wyoming and executed by the Parties. This MOU shall remain in effect for a period of time not to exceed one (1) month beyond the current term of office of any participating chief of police or sheriff. Notwithstanding the foregoing, either Party, with or without cause, may terminate this MOU (i) upon the giving of ten (10) days prior written notice of such termination to the other respective Party or (ii) by a written MOU signed and executed by both Parties.

2. Purpose: The purpose of this MOU is to permit each Party to assign certified peace officers to the other Party for law enforcement services within the municipal boundaries of the Town of Hulett and the City of Cheyenne, as requested by the police departments of the Parties. Neither Party has a duty to provide mutual aid law enforcement assistance under this MOU. Each Party has discretionary authority to decide whether to respond to a request for assistance from the other Party and each Party has discretionary authority to determine the nature and extent of its response. In the event a Party agrees to respond to a request from the other Party, the following terms and conditions shall apply.

3. Prior MOUs Terminated: Effective as of the date upon which this MOU shall be in full force and effect under Section 1, above, all prior MOUs or other written or oral agreements between the Parties regarding extraterritorial law enforcement assistance shall be superseded by this MOU and terminated in their entirety.

4. Responsibilities of Parties. A Party which chooses to respond to a request for assistance from the other Party shall assign certified peace officers who, while so assigned and performing duties, shall be subject to the direction and control of the requesting Party's Chief of Police, or his or her designee, and shall have full peace officer authority within the requesting Party's jurisdiction during the assignment.

5. Assigned Peace Officer Status: For Workers Compensation coverage, peace officers assigned pursuant to this MOU shall be deemed joint employees of the assigning and requesting Parties, who shall be joint employers, pursuant to WYO. STAT. § 7-2-106(c). As joint employers, each Party shall be immune from suit to the extent provided by the Wyoming Worker's Compensation Act, (WYO. STAT. § 27-14-101 *et seq.*). Each Party will be responsible for the payment of wages and benefits for its peace officers who provide assistance under this MOU. A Party who responds to a request for assistance under this MOU may seek reimbursement from the requesting Party for travel expenses and for expenses associated with the repair or replacement of police vehicles, uniforms, and equipment which are damaged or destroyed during the assignment.

6. Specification of Certified Peace Officers Covered by Assignment: It is mutually understood and agreed that, pursuant to WYO. STAT. § 7-2-106(b)(ii), only certified peace officers in good standing may be assigned pursuant to a request for assistance under this MOU. It is further mutually understood and agreed that pursuant to WYO. STAT. § 7-2-106(e), arson investigators, brand inspectors, federal agents, board of outfitters investigators and detention officers may not be assigned under this MOU.

7. Geographical Boundaries of Territory Covered: Pursuant to WYO. STAT. § 7-2-106(b)(iii), certified peace officers requested by either Party shall perform services within the municipal boundaries of the requesting Party, except to the extent permitted by WYO. STAT. § 7-2-106(a).

8. Request for Assistance: Any request for law enforcement assistance under this MOU should be made by the highest ranking law enforcement official on duty or on call of the requesting Party to the highest ranking law enforcement official on duty or on call of the responding Party at the time the assistance is needed.

9. Response to Request: Each Party agrees to respond to a request under this MOU as promptly as possible. The responding Party shall indicate whether and the extent to which personnel and equipment will be provided.

10. Command of Equipment and Personnel: The requesting Party may have command and direction of the equipment and personnel provided by a responding Party, but the responding Party always has the authority to immediately withdraw any equipment or personnel provided under this MOU without regard to whether the requesting Party continues to have a need for assistance. When assistance is no longer needed, the requesting Party shall release its command and direct that all equipment and personnel be returned to the responding Party.

11. Standard of Conduct: Each certified peace officer providing assistance shall maintain the standards of professional conduct as required in the State of Wyoming. However, the requesting Party may request that a particular peace officer be relieved of an assignment under this MOU and the responding Party will honor such request as soon as practicable.

12. Responsibilities of Requesting Party: Each requesting Party will advise responding peace officers of administrative and procedural requirements within the jurisdiction of the assignment.

13. Liability: Except as provided in this MOU, neither Party agrees to insure, defend, or indemnify the other Party. By entering into this MOU neither Party waives its governmental immunity under the Wyoming Governmental Claims Act, or other applicable law and each party reserves all immunities and defenses available to them as governmental entities under the laws of the State of Wyoming and the Constitution and laws of the United States.

14. Pre-Incident Planning: The commanding officers of the Parties' individual police departments may, from time to time, mutually establish pre-incident plans which shall indicate the types and locations of potential problem areas where assistance may be needed. This MOU may be supplemented by schedules and lists of types of equipment and peace officers that would be dispatched under various possible circumstances. In addition, the Parties may engage in mutual training sessions to ensure efficient operations under this MOU. The Parties agree to take such steps as are feasible to standardize the equipment and procedures used to provide assistance under this MOU.

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Each Party has executed this MOU through its duly authorized representatives on the dates set forth below.

Recommended by:

Brian Kozak

Steven Couch

Chief of Police, Cheyenne, Wyoming

Chief of Police, Hulett, Wyoming

Date

Date

Accepted on behalf of
City of Cheyenne, Wyoming

Accepted on behalf of
City of Hulett, Wyoming

Signature

Signature

Printed Name & Title

Printed Name & Title

_____/_____/_____
Date

_____/_____/_____
Date

Carol Intlekofer, City Clerk
Attest Seal